

INSTRUMENT REGULATING FISHING

Torres Strait Fisheries Act 1984

Section 16

Torres Strait Dugong Fishery and Turtle Fishery

TORRES STRAIT FISHERIES MANAGEMENT INSTRUMENT NO. 16

The **PROTECTED ZONE JOINT AUTHORITY** exercising jurisdiction under Commonwealth law over commercial fishing in the Protected Zone pursuant to the arrangement between the Commonwealth and the State of Queensland published on 19th March 1999 in the Commonwealth Gazette No. S125 and acting in accordance with the powers conferred on the Authority by paragraph 35(1)(a) of the *Torres Strait Fisheries Act 1984*, under section 16 of the *Torres Strait Fisheries Act 1984*, makes the following Instrument.

Dated: 31st March 2017

Senator the Hon. Anne Ruston

Parliamentary Secretary to the Deputy Prime Minister and Minister for Agriculture and Water Resources

Chair of the Torres Strait Protected Zone Joint Authority

Citation

1. This Instrument may be cited as the *Torres Strait Fisheries Management Instrument No. 16*.

Commencement

2. This Instrument commences on the day after it is registered on the Federal Register of Legislative Instruments.

Cessation

3. This Instrument is repealed on 31 December 2026 unless earlier revoked.

Interpretation

- 4.1 In this Instrument, unless the contrary intention appears “the Act” means the *Torres Strait Fisheries Act 1984*, and:

- 4.2 Terms used but not defined in this Instrument have the same meaning as in the Act and the *Torres Strait Fisheries Regulations 1985*; and
- 4.3 “**dugong**” means mammals of the species *Dugong dugon*; and
- 4.4 “**turtle**” means the species *Chelonia mydas*, *Caretta caretta*, *Eretmochelys imbricata*, *Natator depressus*, *Dermochelys coriacea*, and *Lepidochelys olivacea*; and
- 4.5 “**equipment for taking dugong**” includes, but is not limited to, all nets, firearms, explosives and poisons; and
- 4.6 “**spear**” means a weapon with a long shaft and pointed head used to take dugong (commonly known as a wap in the Torres Strait region); and
- 4.7 “**the area of the dugong fishery and turtle fishery**” means the area of Australian jurisdiction within the area described in the Torres Strait Fisheries Regulations; and
- 4.8 “**traditional fishing**” means the taking, by traditional inhabitants for their own or their dependants' consumption or for use in the course of other traditional activities, of the living natural resources of the sea, seabed, estuaries and coastal tidal areas, including dugong and turtle.

Prohibitions

- 5.1 Pursuant to paragraph 16(1)(a) of the Act, a person is prohibited from taking dugong or turtle in the area of the dugong fishery and turtle fishery.
- 5.2 Pursuant to paragraph 16(1)(c) of the Act, a person is prohibited from taking or carrying of dugong or turtle on a commercial fishing boat licensed under sections 19(2) and 19(3) of the Act in the area of the dugong fishery and turtle fishery.
- 5.3 Pursuant to paragraph 16(1)(c) of the Act a person is prohibited from taking dugong in the area of the Dugong Fishery by any equipment for taking dugong or method other than with the use of a spear thrown by hand.

Exemption from the prohibitions

- 6.1 Pursuant to paragraph 16(1A)(d) of the Act, a person is exempt from the prohibition in
- a) paragraph 5.1 if that person is taking dugong in the course of traditional fishing other than the area described in the Schedule;
 - b) paragraph 5.1 if that person is taking turtle in the course of traditional fishing;
 - c) paragraph 5.2 if taking or carrying dugong or turtle on a boat licensed under Section 19(2) of the Act that is operating under the conditions of a Traditional Inhabitant Boat (TIB) licence where the boat is no more than 6 metres in length.

Manner of measuring length of boat

7. For the purpose of paragraph 6 the length of the boat is to be determined by measuring the distance between a vertical line passing through the foremost part of the hull and a vertical line passing through the aftermost part of the hull in a horizontal plane,

including the length of any appendage which effectively increases the length of the hull, but excluding the length of any anchor rail, bowsprit or similar appendage.

Revocation of previous instrument

8.1 This Instrument revokes the *Torres Strait Fisheries Management Notice No. 65* and *Torres Strait Fisheries Management Notice No. 66* from the date of commencement of this Instrument.

8.2 In accordance with s16(7A), notwithstanding the revocation of the *Torres Strait Fisheries Management Notice No. 65* and *Torres Strait Fisheries Management Notice No. 66*, any entry previously made under s21(1) of the Act in an existing licence granted under s19(2) or (3) or treaty endorsement granted for engaging in activities that were prohibited in the revoked instruments, such entry shall continue to operate as if it referred to the prohibition in this instrument.

SCHEDULE

AREA OF THE DUGONG SANCTUARY

The area consisting of:

- (a) Commencing at the point of Latitude 11°10' South, Longitude 141°01' East;
 - (b) Running thence north along the meridian of Longitude 141°01' East to its intersection with the Fisheries Jurisdiction line specified in Annex 8 to the Torres Strait Treaty;
 - (c) Thence north-easterly along that line to its intersection with the meridian of Longitude 142° East
 - (d) Thence south along that meridian to its intersection with the parallel of Latitude 11°10' South;
 - (e) Thence west along that parallel to the point of commencement
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